

Company.” (Agreement, pg. 3.)

The AAA employment / workplace fee schedule states that the individual’s filing fee is capped at \$350. Whereas the company pays a higher filing fee, along with a case management fee of \$750. (Otkupman dec. ex. 1.)

The payment clause does not require Plaintiff to pay a case management fee, even if Plaintiff is the one seeking arbitration. Rather, the clause would require Plaintiff to pay a filing fee *or* a case management fee, but the AAA rules do not require Plaintiff to pay a case management fee. Whether the individual or the company seeks arbitration, the company is responsible for paying the case management fee. Thus, Plaintiff is not required to pay the case management fee and the Court finds that this clause is not unconscionable.

Severance

Defendant argues that any unconscionable clause should be severed. The Agreement provides that “If any provision of this Agreement is determined to be void or otherwise unenforceable... such determination shall not affect the validity of the remainder of this Agreement.” (Agreement p. 4.)

The Court finds that the unlimited duration and the PAGA waiver are unconscionable and unenforceable. The next question is whether the unenforceable clauses should be severed from the agreement.

“ ‘ ‘ ‘In deciding whether to sever terms rather than to preclude enforcement of the provision altogether, the overarching inquiry is whether the interests of justice would be furthered by severance; the strong preference is to sever *unless* the agreement is ‘permeated’ by unconscionability.’ ... An agreement to arbitrate is considered ‘permeated’ by unconscionability where it contains more than one unconscionable provision.” ’ [Citation.]” (*Hasty, supra*, 98 Cal.App.5th 1041, 1064.) Multiple unconscionable clauses “indicate a systematic effort to impose arbitration on an employee not simply as an alternative to litigation, but as an inferior forum that works to the employer's advantage.” (*Armendariz, supra*, 24 Cal.4th at 124.) “Severance may be properly denied when the agreement contains more than one unconscionable provision, and ‘ “there is no single provision a court can strike or restrict in order to remove the unconscionable taint from the agreement.” [Citations.]’ [Citations.]” (*Cook, supra*, 102 Cal.App.5th at 329.)

Here, the Court finds that there are two unconscionable clauses, including the PAGA waiver which raises important public policy concerns. The Court finds that severance is not appropriate in this case.

21. 9:01 AM CASE NUMBER: C25-00985

CASE NAME: CHASE MOUTON VS. HUAN LI

***HEARING ON MOTION FOR DISCOVERY: COMPEL PLAINTIFF CATHERINE MOUTON'S FURTHER RESPONSE TO REQUEST FOR PRODUCTION OF DOCUMENT NO.1-5**

FILED BY: LI, HUAN

TENTATIVE RULING:

This hearing was advanced to July 15, 2026 and was heard with discovery motions pursued by Defendants. No appearance is required on July 22, 2026.

22. 9:01 AM CASE NUMBER: MSC21-00907

CASE NAME: HAU WING SEZTO VS. DAVID JUSTICE

***HEARING ON MOTION FOR DISCOVERY: HAVE MATTERS SPECIFIED IN REQUEST FOR ADMISSION TO BE DEEMED ADMITTED**

FILED BY: SEZTO, HAU WING "BONNIE"

TENTATIVE RULING:

Summary

Plaintiff Hau Wing "Bonnie" Sezto's Motion to Deem Matters Specified in Requests for Admissions Admitted and for Monetary Sanctions is unopposed and is **granted**.

Background

Plaintiff has filed a civil action against Defendant David Martin Justice ("Defendant") alleging sexual battery, intentional infliction of emotional distress, false imprisonment, battery, and negligence based on conduct occurring from approximately Plaintiff's age 10 through her late teens. Defendant, who is currently self-represented, is incarcerated at Ironwood State Prison following his June 12, 2023 conviction on twelve felony counts, including violations of Penal Code sections 288(c)(1) (lewd acts upon a child) and 261(a)(2) (forcible rape). He was sentenced to 44 years to life. While his appeal is pending, the conviction is final at the trial court level.

Plaintiff contends that the central liability issues have been conclusively established by Defendant's criminal conviction. With Defendant's guilt already adjudicated, the remaining questions for the civil jury are limited to the nature and extent of Plaintiff's injuries, the amount of compensatory damages, and the amount of punitive damages warranted by Defendant's conduct. Plaintiff contends that Defendant has assets exceeding \$10 million and that his conduct caused her injuries exceeding \$5 million.

The current dispute arises from Defendant's failure to respond to discovery propounded by Plaintiff. In July 2021, Defendant served discovery on Plaintiff, including a deposition notice, and Plaintiff has been diligent in timely responding to all of Defendant's discovery demands. Defendant initially sought a stay of his duty to respond to discovery based on self-incrimination concerns, and the court permitted him to object on that basis. Following his 2023 conviction, the Court finds that self-incrimination is no longer a valid concern.

On May 7, 2025, Plaintiff served written discovery on Defendant, including Requests for Admissions